

Master Services Agreement

This Master Services Agreement (the "Agreement") is entered into as of March 1, 2026 (the "Effective Date") by and between Northwind Analytics, Inc., a Delaware corporation ("Client"), and Vertex Software Labs, LLC ("Provider"). The parties agree as follows.

1. Services and Term

1.1 Provider shall perform the services described in one or more Statements of Work (each, an "SOW"). 1.2 The initial term of this Agreement is twelve (12) months from the Effective Date and shall automatically renew for successive twelve (12) month periods unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term.

2. Fees and Payment

2.1 Client shall pay the fees set forth in each SOW. 2.2 Provider shall invoice Client monthly in arrears. 2.3 All invoices are due and payable within fifteen (15) days of the invoice date. 2.4 Any amount not paid when due shall accrue interest at the rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by law, whichever is lower. 2.5 Provider may suspend services if any undisputed invoice remains unpaid for more than ten (10) days after the due date. All fees are non-refundable.

3. Intellectual Property

3.1 Except for Provider's pre-existing materials, all work product, deliverables, inventions, and intellectual property conceived or developed by Provider in the course of performing the Services shall be the sole and exclusive property of Client, and Provider hereby irrevocably assigns to Client all right, title, and interest therein. 3.2 Provider retains ownership of its pre-existing tools and grants Client a non-exclusive license to use them solely as embedded in the deliverables.

4. Confidentiality

4.1 Each party shall protect the other's Confidential Information using at least the same degree of care it uses for its own, and no less than a reasonable degree of care. 4.2 Confidentiality obligations survive for three (3) years following termination of this Agreement.

5. Limitation of Liability and Indemnification

5.1 EXCEPT FOR A PARTY'S INDEMNIFICATION OBLIGATIONS AND BREACHES OF CONFIDENTIALITY, IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR INDIRECT, INCIDENTAL, OR CONSEQUENTIAL DAMAGES. 5.2 Notwithstanding the foregoing, Client's indemnification obligations under Section 5.3 shall be unlimited and shall not be subject to any cap on liability. 5.3 Client shall indemnify, defend, and hold harmless Provider from any and all claims arising out of or relating to Client's use of the deliverables.

6. Termination

6.1 Provider may terminate this Agreement at any time, for any reason or no reason, upon thirty (30) days' written notice to Client. 6.2 Client may terminate only for Provider's material breach that remains uncured for sixty (60) days after written notice. 6.3 Upon termination, Client shall pay all fees accrued through the effective date of termination.

7. Governing Law and Dispute Resolution

7.1 This Agreement shall be governed by the laws of the State of Nevada, without regard to its conflict-of-laws principles. 7.2 Any dispute arising under this Agreement shall be resolved exclusively by binding arbitration administered in Clark County, Nevada. 7.3 EACH PARTY WAIVES ANY RIGHT TO A TRIAL BY JURY AND TO PARTICIPATE IN A CLASS ACTION.